

25STCV19834 25STCV19834

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 25STCV19834 Hearing Date: August 24, 2026 Dept: 529

SPENCER

HODGIN, ET AL. VS FCA US LLC

MOTION TO COMPEL

INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND
REQUEST FOR MONETARY SANCTIONS

Date

of Hearing: August 24, 2026 Trial Date: None set.

Department:

529 Case

No.: 25STCV19834

Moving

Party: Plaintiffs Spencer

Hodgin and Natalie Hodgin

Responding

Party: Defendant FCA US LLC and Lampe

Chrysler Dodge Jeep Ram

BACKGROUND

On June 30, 2025, Plaintiff Spencer Hodgin and
Natalie Hodgin filed a complaint against FCA US LLC and Lampe Chrysler Dodge
Jeep Ram for various violations of the Song-Beverly Consumer Warranty Act as
well as negligent repair and fraudulent inducement – concealment.

[TENTATIVE]

RULING:

Plaintiffs Spencer Allen Hodgkin and Natalie

K Hodgkin's Motion to Compel Initial Disclosures pursuant to California Code of Civil Procedure §871.26 and Request for Monetary Sanctions is DENIED.

DISCUSSION

Plaintiffs Spencer Allen Hodgkin and Natalie K Hodgkin

move this court for an order compelling Defendant FCA US LLC to comply with California Code of Civil Procedure section 871.26 by producing all documents required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13) and imposing mandatory sanctions against FCA US LLC and its counsel of record in the amount of \$2,500.00 pursuant to California Code of Civil Procedure section 871.26(j)(1).

Effective

January 1, 2025, in an action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20 (above), the parties shall: "Within 60 days after the filing of the answer or other responsive pleading, ... without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h) [of Section 871.26]." (CCP § 871.26(b).)¿

Plaintiffs bring this motion to compel FCA US LLC to

comply with the mandatory initial disclosure requirements of California Code of Civil Procedure section 871.26(h). Pursuant to section 871.26(b), FCA was required to provide complete initial disclosures and documents within 60 days of filing its Demurrer—by January 4, 2026. Plaintiffs contend FCA has failed to conduct the straightforward VIN-based searches of its own DealerCONNECT system that would retrieve the vast majority of these mandatory disclosures in minutes.

In opposition, FCA argues the motion should be

denied because FCA has already produced the documents required by Code of Civil Procedure section 871.26. Moreover, Section 871.26 does not require an unfiltered DealerCONNECT production or every diagnostic, reimbursement, parts-return, or administrative record associated with a VIN.

The court denies the motion to compel compliance.

FCA has produced the initial disclosure documents as required by Code of Civil Procedure section 871.26. The court agrees DealerConnect Report, AutoPay Claims, Complaint Claims as well as LOP records exceed the scope of discovery required under Section 871.26. Plaintiff has not sufficiently demonstrated FCA must do an independent search for these records when FCA has produced all Warranty Claim Records in its possession.

Based on the foregoing, the motion to compel compliance is DENIED. The court also denies the request for sanctions under Code of Civil Procedure section 871.26(j)(1).